

HCJDA 38
JUDGMENT SHEET
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Crl. Appeal No.75131 of 2019

Mazhar Abbas

vs

The State and another

JUDGMENT

Date of hearing:	<u>30.09.2021</u>
Appellant by:	Mian Pervaiz Hussain, Advocate.
State by:	Mr. Muhammad Moeen Ali, Deputy Prosecutor General.

Farooq Haider, J:- Through instant criminal appeal, Mazhar Abbas (appellant) has assailed the judgment dated: 30.11.2019 passed by learned Judge Anti-Terrorism Court-III, Lahore, whereby in case arising out of F.I.R. No.1041/2019, dated: 29.06.2019 registered under Sections: 363 PPC (subsequently offence under Section: 365-A PPC read with Section: 7 of Anti-Terrorism Act, 1997 were added) at Police Station: Shafique Abad, District: Lahore, learned trial court by holding that charge under Section: 365-A PPC has not been proved, convicted and sentenced him as under: -

<u>Convictions</u>	<u>Sentences</u>
<u>Under Section:</u> 363 PPC	<i>“Rigorous Imprisonment for 07 years”</i> with fine of Rs.25,000/- and in default thereof to further undergo six months Simple Imprisonment.
<u>Under Section:</u> 343 PPC	<i>“Rigorous Imprisonment for 02 years”</i> .

Both the sentences were ordered to run concurrently and benefit of Section: 382-B Cr.P.C. was also extended to the convict/appellant.

2. Brief facts, as per written application (Ex.PA) submitted by Muhammad Waseem (complainant/PW-12), are that on 29.06.2019 at 01:45 p.m., Meerab (daughter of complainant aged about 9/10 years wearing pink shirt and trousers, mentally retarded) went outside the house of complainant in order to purchase some eatable things from shop but some unknown accused abducted her and this occurrence of abduction was witnessed by Haji Tariq (PW-17) and Usman (PW-18).

On the basis of above said application, case *vide* F.I.R. No.1041/2019 dated: 29.06.2019 under Section: 363 PPC (Ex.PA/1) was registered at Police Station: Shafique Abad, District: Lahore.

3. On the conclusion of the investigation, the appellant was challaned to the Court and was formally charged under Sections: 365-A PPC and Section: 7 (e) of the Anti-Terrorism Act, 1997, to which he pleaded not guilty and claimed trial.

4. Prosecution got examined twenty two witnesses and while giving up formal witnesses i.e. Muhammad Amir 2222/C, Tanveer Inayat 12694/C, Abdul Wahab S.I., Zul Norain 20769/C and tendering reports of Punjab Forensic Science Agency, Lahore (Ex.PY/1-2 and Ex.PZ/1-2), closed its evidence. Then statement of the accused/appellant was recorded under Section: 342 Cr.P.C. in which he refuted the allegations leveled against him; he did not record his statement under Section: 340(2) Cr.P.C. and also did not produce any evidence in his defence.

5. The learned trial Court after conclusion of the trial has convicted and sentenced the appellant as mentioned above *vide* impugned judgment dated: 30.11.2019.

6. Learned counsel for the appellant has submitted that conviction recorded and sentence awarded to the appellant through impugned judgment are against the law and facts; learned trial court failed to appreciate material available on the record; impugned judgment is result of misreading and non-reading of evidence. He prayed for acquittal of the appellant.

7. Conversely, learned Deputy Prosecutor General while controverting the submissions of learned counsel for the appellant has supported the impugned judgment of the learned trial Court by contending that the appellant was rightly convicted and sentenced, therefore, there is no substance in the appeal.

8. Arguments heard. Record perused.

9. Admittedly neither demand for ransom has been proved nor ransom has been paid and learned trial court held that Section: 365-A PPC has not been proved; furthermore, neither state nor complainant has challenged said finding till now.

10. It has been noticed that no one was named as accused in application for registration of case i.e. Ex.PA and in the FIR Ex.PA/1; it is mentioned in the application for registration of case (Ex.PA) that Haji Tariq (PW-17) and Usman (PW-18) saw alleged abduction of Meerab (alleged detainee) but they both have not deposed against appellant in the court, rather they clearly stated that appellant is not involved in aforementioned abduction; in this regard, relevant portions of statement of Haji Tariq (PW-17) are hereby reproduced:-

“Mazhar Abbas, present in court is not the accused of this case. I have no objection if he is acquitted from this case. Police obtained my signatures on different black papers. The alleged abductee minor was mentally retarded.”

“I was standing there and was purchasing onion from the vegetable shop when I saw Meerab abductee there. I was busy in purchasing of onion and after 01 minute Meerab was not there and I could not see the face of accused who abducted Meerab as he was far away from me. I cannot identify the person who committed abduction of Meerab.”

“Police obtained my signatures on plain papers.”

“it is correct that the accused present has not abducted the minor.”

Relevant portions of statement of Usman (PW-18) are also hereby reproduced:-

“The present accused Mazhar Abbas is not identified by me during abduction as the abductor was wearing helmet. According to my knowledge Mazhar Abbas accused, present in the court is not the person who abducted the minor.”

“I could not see the face of accused who abducted Meerab as he was far away from me. I cannot identify the person who committed abduction of Meerab. It is incorrect to suggest that the present accused abducted Meerab for ransom in my presence.”

“I do not know that whether or not complainant Muhammad Waseem produced 02 snapshots of Meerab before the Investigating Officer. It is incorrect to suggest that I am deposing falsely in this regard. Police obtained my signatures on plain papers.”

“It is correct that the accused present has not abducted the minor.”

Even any other witness has not deposed in the court to the effect that he has seen present appellant while abducting alleged detainee, namely, Meerab. So nutshell is that any substantive evidence in the form of eye-witness account, last-seen or even *Waj takkar* has not been produced by the prosecution to prove the abduction of alleged detainee, therefore, prosecution has been failed to establish charge of abduction against present appellant.

11. As far as alleged recovery of abductee from the custody and house of appellant is concerned, it is important to mention here that raiding team was comprising upon Sajwar Tariq Inspector (PW-14), Ishfaq Butt Inspector/Investigating Officer (PW-21) and other police officials, who were posted in Lahore, case was also registered in Lahore and same was being investigated in Lahore, however, they raided house of present appellant in village Kurriala which is situated in the territorial jurisdiction of Police Station Kasoki, Tehsil and District Hafizabad on 07.07.2019 and statedly recovered detainee from there but neither any Rapat (رپٹ) of Rozenamcha (روزنامچہ) of any Police Station from Lahore about their departure on that day for Hafizabad nor any Rapat (رپٹ) of Rozenamcha (روزنامچہ) about their arrival in Police Station Kasoki, Tehsil and District Hafizabad for the purpose of conducting raid in the house of appellant situated in the territorial jurisdiction of said police station and then taking any police force from said Police Station and going to the house of appellant and after alleged recovery coming back to said Police Station has been produced by the prosecution. It is trite law that non-production of said rapats (رپٹس)/entries of Rozenamcha (روزنامچہ) is fatal for the case of prosecution and said recovery is, therefore, not reliable; in this regard, guidance has been sought from case of **“Amin Ali and another versus The State” (2011 SCMR 323)**; relevant portion from Page No.332 is reproduced:-

“It is not out of place to mention here that the recovery was made from the jurisdiction of another police station but the investigation officer did not go to the said police station or make any entry so as to show his presence at the relevant time within the jurisdiction of that police station or took some help from the said police station. This also creates doubt about the genuineness of the recovery. In these circumstances, no implicit reliance can be placed on such type of recovery.”

Even otherwise, Sajwar Tariq Inspector/Investigating Officer (PW-14) and Ishfaq Butt Inspector/Investigating Officer (PW-21), in their statements recorded in the court, are not consistent with each other on material points,

rather contradicting each other; furthermore, Muhammad Waseem (complainant/PW-12) himself says that his daughter i.e. Meerab (alleged abductee) came back to the house on her own; relevant portion of his statement is hereby reproduced:-

“I got lodged FIR No.1041/2019 due to suspicion. Now I am satisfied that present accused is not involved in this case. I have no objection if he is acquitted from this case. I do not intend to proceed further in this case as all the suspicions are clarified and resolved. There are no reasons to pursue this case. Accused Mazhar Abbas, present before the court may be acquitted from this case. The alleged abductee minor was mentally retarded.”

“I do not remember/confirm that I got recorded before the Investigating Officer that on 30.06.2019 at about 1:45/50 pm a child told me that Abid fruit seller had received a letter. I do not confirm that thereafter I immediately went out from my house and went to Muhammad Abid fruit seller where he was showing an envelope to my brother Aqeel. I do not remember that thereafter I immediately went to Muhammad Abid fruit seller who told me that an unknown person on grey coloured car handed over an envelope to an unknown child who delivered the same to me. I do not remember that I opened the said letter after taking the same from said Abid and found that a paper on which both sides were written.”

“I do not remember that whether said letter was produced by me before the Investigating Officer or not.”

*“The Khaki envelope P2 and letter P3 regarding demand of ransom amount for the release of Meerab abductee was not in my knowledge. **My daughter Meerab/abductee returned to my house on her own.**”*

“It is correct that I have no objection on the acquittal of accused present before this court.”

“It is correct that the accused present in the court never abducted my daughter Meerab.” (emphasis added)

Hence, the recovery of abductee from the custody and house of present appellant could not be proved by the prosecution.

12. As far as recovery of motor-cycle is concerned, no colour, make, model or registration number of motor-cycle is mentioned in the application for registration of case i.e. Ex.PA. and the site plan Ex.PC, therefore, said recovery is of no help to the case of prosecution; furthermore, as far as recovery of mobile phone is concerned, since no voice transcript about any call made from said phone has been produced, therefore, same is also of no avail; so far as recovery of car is concerned, it is case of prosecution that same was used for delivering letters for ransom but when receiving of such letters

has not been proved then recovery of car has lost its evidentiary value. It is trite law that recovery is only corroborative piece of evidence and it enhances the gravity of substantive evidence but when case has not been proved through substantive evidence then corroborative piece of evidence loses its efficacy.

13. As far as letters containing demand of ransom amount by appellant is concerned, neither same were sealed by police officer after taking into possession nor immediately sent to the laboratory, rather same were sent with specimen of handwriting after arrest of the appellant, so report of PFSA in that regard is of no help to the case of prosecution; furthermore, receiving of said letters by complainant party has not been proved by the prosecution, therefore, said letters cannot advance case of prosecution.

14. Nutshell of the above discussion is that prosecution has been failed to prove its case against the appellant beyond shadow of doubt and in such state of affairs there is no need to discuss defence version.

15. In view of all above, instant appeal filed by Mazhar Abbas is **allowed**, conviction recorded and sentence awarded to the aforementioned appellant through the impugned judgment dated 30.11.2019 passed by learned trial court/learned Judge Anti-Terrorism Court-III, Lahore, is hereby set aside. He is acquitted of the charge and shall be released forthwith if not required in any other case.

(AALIA NEELUM)
JUDGE

(FAROOQ HAIDER)
JUDGE

Approved for Reporting.

(AALIA NEELUM)
JUDGE

(FAROOQ HAIDER)
JUDGE